Serial No.40
Regular Cause List

IN THE HIGH COURT OF JAMMU & KASHMIR AND LADAKH AT SRINAGAR

WP(C) 2615/2026
CM(7143/2026)

AFTAB AHMAD CHOWDHARY AND ANOTHER …Petitioner(s)/Appellant(s).

Through: Ms. Saniya Qadir, Advocate

Vs.

UNION TERRITORY OF J AND K (HOME) AND OTHERS ...Respondent(s).

Through:

CORAM: HON'BLE MR. JUSTICE WASIM SADIQ NARGAL, JUDGE

ORDER

21.10.2026

1. The petitioners seek a direction to the respondents to provide them police protection, as they apprehend danger to their life and liberty at the hands of respondent No. 2 (Senior Superintendent of Police, Srinagar) and respondent No. 3 (Station House Officer, Police Station Batamaloo). It is alleged that the said respondents are acting under the pressure of certain unknown members of Shiv Sena and Rashtriya Swayamsevak Sangh (RSS), who are seeking to interfere in the matrimonial life of the petitioners and threaten them with falsely implicating petitioner No. 1 in a kidnapping case.
2. Learned counsel for the petitioners refers to the decision of the Supreme Court in **Lata Singh v. State of U.P. and anr., 2006 (5) SCC 475**, and submits that in absence of there being any legal impediment, the petitioners are entitled to marry according to their choice and the official respondents are duty bound to protect the life and liberty of the petitioners.
3. Any person having attained the age of majority is entitled to contract the marriage as per his/her wishes and the police department is duty bound to protect the life and liberty, if approached. However, it appears that the

petitioners have not ever approached the official respondents for their indulgence in the matter for providing protection to them.

4. In this view of the matter, this petition is disposed of, at this stage, by directing that the respondents shall look into the grievance of the petitioners for providing them adequate security and to ensure that nobody interferes in their married life, if they approach them. It is made clear that no opinion has been expressed with regard to the validity of their marriage.

5. The writ petition is, accordingly, ***disposed of***.

(WASIM SADIQ NARGAL)
JUDGE

SRINAGAR
21.10.2026
"Mubashir "

HIGH COURT
JAMMU & KASHMIR AND LADAKH